

Court No. - 29

Case :- WRIT - C No. - 21793 of 2019

Petitioner :- Aneeta Rawat

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- D.M.Tripathi

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Heard Sri D.M. Tripathi, learned counsel for the petitioner and Sri Mahboob Ahmad, learned counsel for the respondents.

Petitioner is residing in a portion of House No. C-656 G.T.B. Nagar, Kareli, Allahabad. The owner of the said house was Late Daya Ram, father-in-law of the petitioner. In one portion of the said house some other heirs of Late Daya Ram are residing.

The petitioner and her husband claims to be the co-owner of the said house on the death of Daya Ram. She applied for an electric connection on 29.12.2018 and deposited the necessary processing fee of Rs.100/- The petitioner was required to submit the necessary certificates and forms for the purpose of sanction of the electric connection but in absence of no objection certificate from the owner of the house, the Junior Engineer has refused to process the papers any further.

The submission of learned counsel for the petitioner is that she and her husband being the co-owner of the said house no such no objection is necessary.

The matter with regard to the grant of sanction of electric connection is to be considered by the Executive Engineer concerned in accordance with Annexure 4.2 of the U.P. Electricity Supply Code, 2005.

In view of the aforesaid facts and circumstances, we ***dispose*** off the writ petition with a direction to the Executive Engineer concerned to consider the matter of grant of electric connection to the petitioner in accordance with law and if necessary, not to insist for the no objection certificate if the purpose could be served by the submission of an indemnify bond by the petitioner as the husband of the petitioner appears to be the natural heir of late Daya Ram, the actual owner of the house.

The Executive Engineer shall take action in the matter on verification of the records within a period of one month from

the date of copy of this order along with comprehensive representation is received by him from the petitioner.

Order Date :- 9.7.2019

Sattyarth